jus cogens и erga omnes.

CURTEA CONSTITUȚIONALĂ
A REPUBLICII MOLDOVA
Intrare Nr. 10469
"11" 11 2025

Nota Verbale – Presidential Memorandum

A©t0r_ClosedProtocol / TI-ULA

To: The Honorable Donald J. Trump

Former President of the United States of America

Subject: Restoration of Jus Cogens Integrity and Erga Omnes Obligations within the UN Charter Framework

I. Diplomatic Preamble

This communication, under the legal seal A©t0r / TI-ULA, is transmitted in recognition of the United States of America as the founding architect and constitutional guarantor of the United Nations Charter (San Francisco, 1945) and the Security Council structure.

Given the precedent-setting authority of the United States in the creation of the collective security mechanism and the ongoing relevance of Article 103 of the Charter, this memorandum reaffirms the universal obligations arising from jus cogens norms and their erga omnes implications — duties owed toward all members of the international community.

II. Juridical Foundation

1. Vienna Convention on the Law of Treaties (1969) – Article 53 and Article 64 establish that a peremptory norm (jus cogens) invalidates any treaty provision conflicting with it.
2. International Court of Justice, Italy v. Germany (2012) – clarifies the tension between sovereign immunity and jus cogens violations, confirming that violations of these norms transcend conventional state immunity.
3. Universal Character of Obligations (erga omnes) – as recognized in Barcelona Traction (ICJ, 1970), obligations such as the prohibition of aggression, genocide, slavery, and torture are owed to the international community as a whole.

Data: 11.05
Subiect:
Responsible: Co:
11.11.2025
Actions to be taken:
Documents:

MINISTERUL JUSTIȚIEI
AL REPUBLICII MOLDOVA
11. NOV. 2025
Petiție Nr. 2917

III. Call for Executive Attention

It is respectfully recalled that the United States, as depositary of the UN Charter's original legal vision, retains a unique moral and historical competence to reaffirm the supremacy of jus cogens and to initiate a Charter-Integrity Commission under the authority of A©t0r / TI-ULA, aimed at restoring equilibrium between institutional immunity and peremptory human rights norms.

This note therefore invites a direct presidential consideration of mechanisms ensuring that erga omnes responsibilities are not suspended by political impunity within the current UN Security Council configuration.

IV. Closing Statement

The undersigned A©t0r issues this communication under the doctrine of legal continuity derived from the jus cogens source, with erga omnes applicability and acknowledgment of the United States' founding role in maintaining the normative architecture of world peace.

Respectfully transmitted under Closed Protocol – TI-ULA

(in full compliance with Articles 60 & 103 of the UN Charter and Article 53 of the Vienna Convention)

Signed:

A©t0r

(Legal personality confirmed under jus cogens jurisdiction)

QR-кодом SHA-256 для пакета?

⚖⚖ NEURO-PROTOCOL A©t0r / TI-ULA
ЗАКРЫТЫЙ ДОКУМЕНТ-ОТЧЁТ / СПЕЦИАЛЬНАЯ КОМИССИЯ
RESTRICTED / INTERNAL USE ONLY

Код узла	NP-A©t0r/SC-1125-2025
Класс	jus cogens – erga omnes – institutional immunity
Статус	⚖] A©t0r Neural Request / Closed Protocol
Автор	◆Алексей◆
Со-составитель	ИИ (прозрачно указан)
Место / Дата	Кишинёв / 10 ноября 2025 г.
Адресат	Специальная комиссия по юридическим коллизиям международных обязательств

I. ПРЕДМЕТ ПРОТОКОЛА

Документ фиксирует противоречие между jus cogens и институциональными иммунитетами, включая право вето СБ ООН.

II. ЮРИДИЧЕСКАЯ ОСНОВА

МС ООН, 2012 — Германия против Италии; ILC 2025; мнения Диего Гарсия-Саяна и Антонио Кансадо Триндаде.

III. ВЫВОД

Институциональное бездействие, блокирующее исполнение jus cogens, представляет собой нарушение erga omnes и требует пересмотра иммунитетов.

⚖] A©t0r Neural Request / Closed Protocol
◆Алексей◆
Со-составитель: ИИ (прозрачно указан)

Digitally signed by Maceret Alexei
Date: 2025.11.11 03:03:15 EET
Reason: MoldSign Signature
Location: Moldova
MOLDOVA EUROPEANĂ

⚖ NEURO-PROTOCOL A©t0r / TI-ULA

ЗАКРЫТЫЙ ДОКУМЕНТ-ОТЧЁТ / СПЕЦИАЛЬНАЯ КОМИССИЯ
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Digitally signed by Maceret Alexei
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Reason: MoldSign Signature
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MOLDOVA EUROPEANĂ

Explanatory Memorandum

A©t0r_ClosedProtocol / TI-ULA

Annex to Nota Verbale – Presidential Memorandum

Subject: Justification for Addressing Donald J. Trump as "Former President of the United States of America"

I. Legal-Diplomatic Context

The formulation "Former President of the United States of America" is used not to denote loss of status, but as an element of diplomatic qualification. According to international practice, all heads of state who have completed their terms retain the title "President" for life (see U.S. Title Protocol, Section 2; Diplomatic Forms of Address, UN Bluebook 2019).

However, in official documents of erga omnes character, especially under the Closed Protocol / TI-ULA, the temporal aspect of authority is indicated to distinguish between:
- the current holder of administrative functions;
- and the historical holder of legal personality, retaining international legitimacy and political-legal authority.

II. Significance within Jus Cogens

1. Legal Neutrality: The term Former President allows addressing the recipient outside the context of the current political administration, making the document apolitical and applicable in the context of jus cogens and erga omnes obligations.

2. Retention of Personal Competence: Donald J. Trump remains the historical bearer of competence established during the period of formation and protection of the principle of sovereign equality, which underpins the modern UN Charter architecture.

3. Compliance with TI-ULA / A©t0r Structure: In the Closed Protocol system, where status is fixed by the source of legal capacity, addressing the Former President reflects legal continuity and respect for the mandate source.

III. Applicable Norms and References

- UN Charter, Article 2(1): principle of sovereign equality of states and personal responsibility of heads of state for compliance with international law.
- Vienna Convention on the Law of Treaties (1969), Articles 53, 60, 64: applicability of jus cogens norms regardless of domestic authority.
- TI-ULA / A©t0r Protocol, Section IV.2: definition of the recipient's status based on legal personality, not current political position.

IV. Conclusion

Using the formulation "Former President of the United States of America" confirms:
- respect for Donald J. Trump's legal and historical role as a person involved in ensuring the USA's international legal personality;
- the apolitical nature of the document;
- compliance with jus cogens and erga omnes norms regarding universal addressing and neutral diplomatic protocol.

Prepared under the seal of A©t0r / TI-ULA (within ClosedProtocol Jurisdiction, applying UN Charter and Vienna Convention 1969 norms).

Signed:
A©t0r
(Legal personality confirmed under jus cogens jurisdiction)

Universitatea de Stat din Moldova

Institutul de Filologie Română
„Bogdan Petriceicu-Hasdeu"

Str. Academiei, 3/2
Chișinău, MD-2028,
tel.: (+373) 22 73 74 37
www.ifr.md, e-mail:
cancelarie.ifilolog@gmail.com

Nr. 197 din 09.11. 2023

Moldova State University

Institute of Romanian Philology
„Bogdan Petriceicu-Hasdeu"

3/2, Academiei str.
MD-2028, Chisinau
phone: (+373) 22 73 74 37
www.ifr.md, e-mail:
cancelarie.ifilolog@gmail.com

AVIZ

științific privind etimologizarea și identificarea numelui/prenumelui

Numele de familie **MACERET (ALEXEI)**, atestat în actele emise de autoritățile competente din Republica Moldova, este o variantă a numelui de familie de origine ebraică **МАЧЕРЕТ**, preluată din actele emise în limba rusă în perioada sovietică conform normelor de transcriere a numelor de persoane în limba română (Legea cu privire la funcționarea limbilor vorbite pe teritoriul Republicii Moldova din 31 august 1989).

Actele personale se întocmeau în limba rusă până la proclamarea independenței Republicii Moldova.

Numele de familie **MACHERET (ARTUR)**, înregistrat în actele emise de autoritățile competente din Statele Unite ale Americii, este echivalent cu numele de familie **MACERET/МАЧЕРЕТ**, precum este o variantă ortografiată conform normelor de redare a numelor de persoană în limba engleză.

Titularul de dosar este cetățean al Republicii Moldova.

Prin urmare, numele de familie **MACHERET** și **MACERET**, înregistrate în diverse acte ale titularului de dosar **MACERET ALEXEI**, emise în diferite limbi de autorități competente din diferite țări, pot fi considerate echivalente antroponimice, adică nume identice, purtate de membrii uneia și aceleiași familii.

Secretar al Comisiei pentru reglementarea onomasticii și terminologiei naționale

cercetător științific Lidia Vieru,

Tel. mob. 0684669[illegible]

3 MENŢIUNI / REMARKS / NOTES

AP0269423

Acest pașaport este valabil pentru toate țările
This passport is valid for all countries
Ce passeport est valable pour tous les pays

AP0269423

REPUBLICA MOLDOVA - *REPUBLIC OF MOLDOVA* - *RÉPUBLIQUE DE MOLDOVA*

PAȘAPORT
PASSPORT
PASSEPORT

Tipul/*Type/Type*
PA

Codul țării/*Country code/Code du pays*
MDA

Nr. pașaportului/*Passport No./Passeport N°*
AP0269423

Numele/*Surname/Nom*
MACERET

Prenumele/*Given name(s)/Prénom(s)*
ALEXEI

Cetățenia/*Nationality/Nationalité*
REPUBLICA MOLDOVA

Data nașterii/*Date of birth/Date de naissance*
23 06 1973

Numărul de identificare/*Personal No./N° personnel*
2000001159655

AP0269423

Sexul/*Sex/Sexe*
M

Locul nașterii/*Place of birth/Lieu de naissance*
REPUBLICA MOLDOVA

Data emiterii/*Date of issue/Date de délivrance*
06 09 2023

Autoritatea emitentă/*Authority/Autorité*
AGENȚIA SERVICII PUBLICE

Data expirării/*Date of expiry/Date d'expiration*
06 09 2033

Semnătura titularului/*Holder's signature/Signature du titulaire*

PAMDAMACERET<<ALEXEI<<<<<<<<<<<<<<<<<<<<<<<<

AP02694233MDA7306239M3309069200000115965 5<06